

Proffered Sworn Declaration and Notice of Victim Status

Re: Reardon v. Layton City et al., Case No. 1:25-cv-00041-JCB

United States District Court for the District of Utah

TO THE HONORABLE COURT:

Comes now the Plaintiff, Matthew Oliver Reardon, pro se, and respectfully submits this Proffered Sworn Declaration and Notice of Victim Status for chambers review and post-stay docket consideration pursuant to the Justice for All Act of 2004 (18 U.S.C. § 3771), the First and Fourth Amendments of the U.S. Constitution, and inherent equitable authority to prevent continuing irreparable harm.

This submission is not a motion, and no relief is presently requested. Plaintiff fully acknowledges the Court's March 31, 2025 Order instructing that no further pleadings be filed pending judicial review of Plaintiff's IFP eligibility and initial complaint.

However, Plaintiff must respectfully notify the Court of subsequent events occurring on March 31, 2025, that directly relate to the allegations raised in this case and materially expand the nature of constitutional violations alleged therein. These events are the subject of the enclosed sworn declaration (Exhibit D), which Plaintiff attempted to deliver in person to the FBI Salt Lake City Field Office. The FBI refused to accept the document, threatened arrest, and recorded Plaintiff's license plate in retaliation for peacefully attempting to report federal crimes and misconduct connected to this litigation.

Additionally, Plaintiff asserts his legal standing as a crime victim under 18 U.S.C. § 3771(e), and invokes the statutory rights therein, including:

- The right to be treated with fairness and with respect for dignity and privacy;
- The right to be reasonably protected from the accused;
- The right to proceedings free from unreasonable delay;
- And the right to be heard at public proceedings involving the criminal conduct at issue.

Plaintiff alleges that the conduct of Captain Hildon Sessums and certain agents of the FBI—including retaliation for whistleblower disclosures, suppression of evidence, and deprivation of rights under color of law—constitute criminal acts in violation of 18 U.S.C. §§ 241, 242, 1512, and 1513.

In light of these developments, Plaintiff respectfully submits this declaration into the Court's chambers record solely for preservation and post-stay review. Plaintiff does not request any

ruling or judicial action at this time, but asserts that continued silence or inaction may embolden further harm and compound existing retaliation, including through surveillance, reputational damage, and barriers to legal redress.

This submission is also being referred to the DOJ Office of Inspector General, the U.S. Senate Judiciary Committee, and relevant oversight bodies to ensure transparency and accountability.

Respectfully submitted,



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Dated: April 08, 2025

Enclosure: Exhibit D – Sworn Declaration Dated April 1, 2025

DECLARATION OF MATTHEW OLIVER REARDON

Pursuant to 28 U.S.C. § 1746

I, Matthew Oliver Reardon, declare under penalty of perjury under the laws of the United States of America that the following is true and correct:

1. I am a journalist and constitutional rights advocate residing in Layton, Utah. I am competent to make this declaration and do so of my own personal knowledge.
2. On March 31, 2025, I visited the FBI Salt Lake City Field Office in an attempt to deliver an affidavit alleging serious misconduct and potential federal crimes by Captain Hildon Sessums of the Oxford, Mississippi Police Department.
3. Captain Sessums has previously admitted to being a graduate of the FBI National Academy, and I believe that his ties to the FBI may explain the federal government's ongoing unwillingness to investigate his conduct or accept reports implicating him in civil rights violations and unlawful surveillance.
4. I have previously experienced refusal, stonewalling, and systemic inaction from the FBI in response to my attempts to report documented abuses involving Mississippi state and local officials. I believe this demonstrates a longstanding pattern of disregard or prejudice by the Bureau against me.
5. Upon arrival at the Salt Lake FBI office on March 31, 2025, I was not allowed past the outer visitor gate. FBI agents refused to even approach to retrieve my affidavit or engage in discussion. They instead demanded my driver's license and personal identification for the purpose of running a full background check, before they would even accept a piece of paper from me.
6. I was there for lawful purposes, attempting to submit documented evidence and a sworn statement alleging criminal activity by a law enforcement official.
7. I explicitly refused to submit to a background check, citing my Fourth Amendment right against unreasonable search and seizure. I told them that no victim of a crime should be required to give up their constitutional rights to report criminal conduct.

8. The FBI agent became hostile and refused to engage unless I complied with this arbitrary and unconstitutional demand. This procedure, which he claimed was "policy," served to chill my First Amendment rights, as I was ultimately prevented from submitting a criminal complaint or my affidavit due to their refusal to accept it without unlawfully searching me first.
9. I began reporting on the event live, standing in the publicly accessible visitor parking lot outside the gate of the FBI field office. I was peacefully reading from my declaration on camera when two FBI agents approached me without warning or conversation and ordered me to leave immediately, under threat of arrest for trespassing.
10. When I asserted my right to be present in the public visitor area as a journalist and civilian. I pointed out that taxpayer-funded federal property is not private, however they insisted the parking lot was "FBI-owned private property" and that I was no longer welcome. Their only response was: "If you don't leave, you will be charged."
11. In addition, an agent walked around my car to the rear and recorded my license plate number further escalating the surveillance, intimidation, and harassment against me.
12. I believe that this act was retaliatory, and that the FBI's actions-past and present-reflect a deliberate effort to suppress my speech, evade accountability, and shield Sessums from investigation due to institutional ties and complicity.
13. I believe this encounter, as well as prior conduct, establishes:
 - A violation of my First Amendment right to petition the government and report as a journalist.
 - A violation of my Fourth Amendment right against suspicion-less search.
 - A retaliatory pattern against a known journalist and rights advocate.
 - Probable unlawful sharing of surveillance/intelligence with Sessums by the FBI or its agents.
14. I reserve all rights to pursue appropriate legal action, including constitutional claims and discovery of FBI communications with Oxford, Mississippi law enforcement.

Executed on this 1st day of April, 2025 at 0700.

A handwritten signature in black ink, appearing to read 'MOR', is written over a horizontal line.

Matthew Oliver Reardon